

★ STATE OF TEXAS ★

POLICY DIRECTIVE

Crowd Management and Public Safety Data Governance Policy

Analytics Data Standards, Sharing Protocols, and Retention Requirements

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Section 1 — PURPOSE AND POLICY STATEMENT

The State of Texas is committed to leveraging advanced analytics technologies to protect public safety at high-density events, transportation hubs, and major public spaces while rigorously safeguarding individual privacy and civil liberties. This policy establishes binding standards for the collection, processing, sharing, and governance of crowd analytics data generated by the Smart City Public Safety Platform (SCPSP) operated within the State of Texas.

Texas hosts major recurring public gatherings including South by Southwest (Austin), the State Fair of Texas (Dallas), Houston Livestock Show and Rodeo, Formula 1 United States Grand Prix (Austin), multiple NFL and MLB venues, and the Texas Independence Day Celebration — collectively drawing tens of millions of attendees annually. Effective crowd monitoring policy is essential to protect life safety at these events while maintaining public trust.

Section 2 — DEFINITIONS

Term	Definition
Crowd Analytics Data	Aggregate, anonymized data representing crowd density, person counts, zone severity classifications, and movement patterns — containing no PII
CRITICAL Zone	A monitored area where the real-time person count equals or exceeds the configured threshold_critical value, triggering automated alert and operator notification
Restricted Zone	A designated area (e.g., restricted access corridors, secured perimeters) where any person detection constitutes a policy violation
Pedestrian-Only Zone	A designated area where vehicle detection triggers a CRITICAL alert irrespective of crowd count
Event Data	Crowd analytics data generated during a designated special event, subject to enhanced retention and sharing provisions
Covered Entity	Any Texas state agency, municipality, county, transit authority, or contracted operator deploying SCPSP infrastructure
Data Controller	The covered entity that determines purposes and means of crowd analytics data processing
Data Processor	A vendor or contractor processing crowd analytics data on behalf of a data controller under a written agreement
Anonymized Data	Data from which all directly and indirectly identifying information has been removed such that re-identification risk is negligible
Incident Report	An AI-generated or operator-authored document summarizing crowd events, severity timeline, response actions, and outcomes

Section 3 — DATA CLASSIFICATION FRAMEWORK

All data generated by or derived from SCPSP systems shall be classified according to the following taxonomy, consistent with Texas DIR Data Classification Policy (TAC §202.73):

Classification	Examples	Access Control	Encryption Required
Public	Aggregate weekly crowd trend summaries; anonymized hotspot heatmaps published in annual reports	Unrestricted public access	In transit only
Sensitive — Official Use Only	Zone-level alert logs; crowd count time-series; system configuration; operator audit trails	Role-based; authenticated operators	In transit + at rest (AES-256)

Classification	Examples	Access Control	Encryption Required
Sensitive — Law Enforcement Sensitive	CRITICAL alert records linked to active law enforcement response; LLM incident reports used in investigations	Law enforcement personnel only; dual authorization for export	In transit + at rest (AES-256); FIPS 140-2 compliant
Controlled — Court-Ordered	Data subject to criminal discovery or civil litigation hold	Legal counsel + system administrator; court order required	AES-256 + hardware security module

Section 4 — DATA MINIMIZATION AND PURPOSE LIMITATION

In accordance with the principle of data minimization, SCPSP systems shall collect and retain only the minimum data necessary to fulfill the stated public safety purpose. The following data minimization requirements are mandatory:

- Raw video frames shall not be persisted to any storage system; only derived analytics (counts, scores, severity) shall be stored
- Person detection outputs (bounding boxes, confidence scores) shall be aggregated into zone-level counts and immediately discarded
- No individual-level tracking data, movement trajectories, or re-identification hashes shall be generated or stored
- LLM prompt histories containing crowd event descriptions shall not include location-linked timestamps more granular than 15-minute intervals in any exported or shared document
- System logs shall be purged of IP addresses and operator usernames after 90 days (audit logs excepted)
- Heatmap images shall be generated as aggregated visualizations only; no per-person heat signatures shall be stored

Section 5 — LAWFUL BASIS FOR PROCESSING

Processing of crowd analytics data under this policy is conducted under the following lawful bases recognized under Texas law:

- Public Task: Processing is necessary for the performance of public safety functions carried out by Texas state agencies and municipalities, pursuant to Texas Government Code §418.043 (TDEM authority) and Texas Local Government Code §342.001 (municipal police powers)
- Vital Interests: Real-time CRITICAL alert processing is justified under the vital interest of protecting life safety at crowd-density emergencies
- Legal Obligation: Retention of event records related to criminal investigations is required by Texas Code of Criminal Procedure Art. 38.43
- Legitimate Interests: Long-term crowd pattern analytics for urban infrastructure planning, subject to balancing test and privacy impact assessment

Section 6 — INTER-AGENCY DATA SHARING STANDARDS

Crowd analytics data may be shared between Texas covered entities and authorized federal partners subject to the following conditions:

Recipient Category	Permissible Data	Required Agreement	Prohibited Data
Other Texas State Agencies	Anonymized aggregate crowd trend data; public safety alert summaries	Inter-agency MOU via Texas DIR	Individual alert records linked to ongoing investigations
Texas Municipalities (non-deploying)	Zone-level crowd statistics for adjacent zones; event safety coordination data	Data Sharing Agreement (DIR template)	System configuration; operator access credentials

Recipient Category	Permissible Data	Required Agreement	Prohibited Data
Federal Partners (DHS, FBI, FEMA)	CRITICAL alert summaries during declared disasters or federal events (Super Bowl, Presidential visits)	Federal Information Sharing Agreement; FBI CJIS Policy compliance	Raw video; unaggregated time-series below 15-min resolution
Academic Researchers	Fully anonymized, aggregated datasets with minimum 30-day lag; no event-day data	IRB-approved Data Use Agreement; DIR security review	Event data; any data with geolocation precision < city block
Private Event Organizers	Real-time crowd count feeds for their permitted event footprint only; no historical data	Licensed Data Feed Agreement; indemnification clause	Data from public spaces outside event perimeter; cross-event comparisons

Section 7 — SPECIAL EVENT DEPLOYMENT PROTOCOLS

For major recurring events with anticipated attendance exceeding 50,000 persons, covered entities shall prepare an Event Safety Analytics Plan (ESAP) in coordination with TDEM at least 60 days prior to the event. The ESAP shall specify:

- Monitored zone map with threshold_critical values per zone, approved by the event safety officer
 - Escalation contact tree for CRITICAL alert notification including event security director, municipal police incident commander, and TDEM Regional Liaison
 - Maximum data retention period for event-specific analytics (not to exceed 90 days post-event for general data; 7 years for any data related to a safety incident)
 - Post-event debriefing report template, to be completed within 30 days using AI-generated incident reports supplemented by operator review
 - Public transparency summary to be published within 90 days of event conclusion
- Designated major events requiring mandatory ESAP preparation include but are not limited to: State Fair of Texas, South by Southwest, Formula 1 USGP, Houston Livestock Show and Rodeo, Texas A&M and University of Texas home football games at venues with capacity $\geq 70,000$, and any event for which the Texas Governor's Office has issued a Major Event Proclamation.

Section 8 — DATA BREACH NOTIFICATION AND INCIDENT RESPONSE

In the event of unauthorized access to, disclosure of, or destruction of Sensitive—Official Use Only or higher crowd analytics data, the covered entity shall comply with the Texas Identity Theft Enforcement and Protection Act (Business & Commerce Code §521) and DIR Cybersecurity Rule (TAC §202.73), including:

- Notify Texas DIR within 48 hours of discovery via the Texas Cyber Security Operations Center (CSOC) portal
- Notify affected data subjects within 60 days if there is a reasonable belief PII was compromised (note: properly anonymized crowd analytics data does not constitute PII under Texas law)
- Engage Texas DPS Cybercrime Unit and, for federal infrastructure, CISA within 72 hours for incidents affecting law-enforcement-sensitive data
- Prepare an Incident Report with root cause analysis within 30 days of containment for submission to the Texas Legislative Budget Board

Section 9 — APPROVAL AND SIGNATURES

Signature & Date

Chief, Texas TDEM

Texas Division of Emergency Management

Signature & Date

Chief Data Officer

Texas Department of Information Resources

Signature & Date

General Counsel

Texas DPS